

17STLC05758 17STLC05758

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-25

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Case Number: 17STLC05758 Hearing Date: August 25, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Mercury Insurance Company's Motion to Amend

Judgment is continued to October 1, 2026 at 10AM. No later than September 11, 2026, Plaintiff is to ordered to file and serve a supplemental declaration addressing the proper amount of the judgment in light of the \$6869.44 payment by Alliance United provided for in the parties' stipulation. Any opposition or response may be filed and served no later than nine court days before the hearing.

Analysis:

On December 12, 2017, Plaintiff Mercury Insurance Company ("Plaintiff") filed this subrogation action against Defendants Alex Jimenez ("Defendant Alex Jimenez") and Cristobal Jimenez ("Defendant Cristobal Jimenez"). On February 16, 2018, Plaintiff filed a request for dismissal of the action pursuant to Code of Civil Procedure section 664.6, which was entered by the court on the same day. (Request for Dismissal, filed 0216/18, ¶1.)

On August 8, 2025, Plaintiff filed a Motion to Enter Judgment Pursuant to Settlement Agreement Under CCP § 664.6. The Court granted the Motion to Enter Judgment on October 20, 2025 and ordered judgment entered in favor of Plaintiff for "Principal in the amount of \$3,150.00, plus Attorney's Fees of \$1,187.50, plus Costs of \$539.50 for a total of \$4,877.00." (Minute Order, 10/20/26.) Judgment was entered accordingly on April 1, 2026.

Plaintiff filed the instant Motion to Amend

Judgment on May 28, 2026. The Motion was served on Defendant by first-class

mail on the same day. No opposition has been filed to date.

Discussion

Plaintiff moves for an order amending the judgment as entered above, to \$22,917.24 principal, plus costs of \$479.50, for a total of \$23,396.74. (Motion, Thai Decl., ¶2 and Exh. 1.) The Motion is brought on the basis that Plaintiff's counsel failed to realize that upon defaulting on the settlement, the parties agreed to enter judgment in the demand of the Complaint (\$22,917.24), plus attorney's fees and costs. (Ibid.) Instead, Plaintiff's counsel moved for entry of judgment in the amount of the agreed-upon settlement (\$6,000.00) less the payments made by Defendant. (Ibid.)

Plaintiff

moves to amend the judgment pursuant to Code of Civil Procedure, section 473, subdivision (b). Section 473(b) allows the Court to relieve a party from "a judgment, dismissal or order, ... taken against the party through the party's mistake, inadvertence, surprise or excusable neglect." It is not clear that section applies here to the extent it applies to relief from judgments entered "against" a party.

Regardless, the Court may amend judgments to correct clerical errors under Code of Civil Procedure § 473(d). The error identified by counsel appears to fall in that category. The parties' stipulation plainly entitles Plaintiff in the event of a default in payments to judgment in the sum of \$22,917.24, with Defendant to receive credit for payments made, plus costs of \$370.00 for filing and \$109.50 for service. (Mot., Ex. 1, ¶1.)

The Court will not grant the Motion as filed, however. Plaintiff proposed judgment amount of \$20,546.74 disregards the language in the stipulation providing that Defendant's carrier would pay \$6,869.44 toward the judgment. Under the terms of the agreement, any payment by the carrier should be credited to the judgment amount outstanding. Accounting for that credit, it would appear the appropriate amount of the judgment should be no more than \$13,677.30 (\$20,546.74 - \$6,869.44.) The Court will continue the hearing on the Motion to allow Plaintiff to file and serve a supplemental declaration addressing this issue.

Conclusion

Plaintiff Mercury Insurance Company's Motion to Amend

Judgment is continued to October 1, 2026 at 10AM. No later than September 11, 2026, Plaintiff is to ordered to file and serve a supplemental declaration addressing the proper amount of the judgment in light of the \$6869.44 payment by Alliance United provided for in the parties' stipulation. Any opposition or response may be filed and served no later than nine court days before the hearing.

Moving party to give notice.